

WaterCap — Terms & Conditions

Your waterpark memories, captured and delivered to you

Effective date: July 6, 2026 · **Version:** 1.0 · Applies to the WaterCap iOS app, Android app, and web app

1. Acceptance of These Terms

These Terms & Conditions (the “**Terms**”) govern the use of the WaterCap service — the WaterCap mobile apps and web app (the “**Service**”) — operated by **Peocl Ltd.** (“**we**”, “**us**”). By linking a wristband, browsing media, or making a purchase you accept these Terms. If you do not agree, please do not use the Service.

The Service is intended for users aged 18 or over. Minors may use it only through a parent or legal guardian, who is responsible for their use.

2. The Service

The Service lets waterpark guests link the park wristband they received to their own device, view reduced-quality previews of photos and videos captured of them at the park (on water slides and by park photographers), and purchase packages that unlock the full-quality media.

3. Wristband Linking

- Linking is done physically: you enter the number of a park scanner in the app and tap your wristband on that scanner.
- Media associated with a wristband is accessible to **every device that has linked that wristband**. You are responsible for keeping your wristband safe and for not allowing others to scan it.
- Link only wristbands worn by you or by a person in your care (for example, your child). Linking a wristband that is not yours or attempting to access another guest’s media is prohibited.

4. Packages and Prices

Package	Includes	Price
Photographer Photos	All park-photographer shots of your wristband for the visit day	₪10
Waterslide Videos	Your ride videos and ride photos for the visit day	₪20
Everything	All photos & videos of your wristband for the visit day	₪25

- All prices are in Israeli new shekels (₪) and include VAT where applicable.
- A purchase applies to **one wristband for one visit day**.

- We may change prices and packages from time to time; the price shown at the moment of purchase is the price you pay.

5. Payment

- Payments are processed by **Tranzila**, a PCI-DSS Level 1 certified payment processor. Payment details are entered directly into Tranzila's secure fields and never reach our servers.
- Accepted payment methods are shown in the app at checkout (for example credit card, and Google Pay on supported devices).
- You confirm that you are authorized to use the payment method provided.

6. Delivery and Availability of Media

- Purchased media is unlocked in the app **immediately** after payment is confirmed, on every device linked to the wristband.
- Media is available for a limited period — currently **7 days after the visit day** — after which it is permanently deleted, including media you purchased. **Please download what you want to keep within this period.** Deleted media cannot be recovered, and no refund is due for media that was available for the full period.

7. No Guarantee of Capture

We do not commit that any particular ride, slide, moment, or visit will be photographed or recorded. Coverage depends on camera positions, wristband detection, lighting, and technical conditions, and some or all media for a visit may not exist. A purchase unlocks **only the media actually captured** for your wristband — the previews shown before purchase reflect what exists. The existence of previews is not a promise of any particular quality of the full media beyond the nature of automated on-ride capture.

8. Cancellations and Refunds

- The packages are digital content ("information" as defined in the Computers Law, 5755-1995) supplied immediately upon purchase. In accordance with the Israeli Consumer Protection Law, 5741-1981, **a transaction for information is not subject to the remote-sale cancellation right**, and once media has been unlocked the purchase cannot be cancelled.
- If you were charged and the media failed to unlock, or you were charged more than the displayed price, contact us within 14 days and we will correct the charge or refund it.
- Nothing in these Terms derogates from rights granted to you by mandatory consumer law.

9. License to Purchased Media; Intellectual Property

- Upon purchase you receive a **personal, non-exclusive, non-transferable license** to download, keep, and share the purchased media for private, non-commercial purposes.
- Commercial use of the media (including sale, advertising, or publication for profit) requires our prior written consent.

- The Service, apps, software, design, and trademarks remain our property or the property of our licensors. Preview (reduced-quality) media is provided for evaluation only and may not be copied, captured, or distributed.
- Media may show other guests in the background. You must respect their privacy when sharing; do not publish media in a manner that harms another person.

10. Acceptable Use

You may not: interfere with park scanners or cameras; attempt to access media of a wristband you did not physically link; circumvent purchase or preview restrictions; reverse engineer, scrape, or overload the Service; or use the Service in violation of any law. We may suspend or block access — including access of a specific device or wristband — in the event of abuse.

11. Privacy

Our collection and use of personal information, including the photos and videos themselves, is described in the [WaterCap Privacy Policy](#), which forms part of these Terms. Please read it.

12. Availability and Disclaimer

- The Service is provided **“as is”**. We do not warrant uninterrupted or error-free operation, and the Service may be unavailable due to maintenance, connectivity, or technical faults.
- We are not a party to your visit arrangements with the waterpark; attraction availability and park admission are the park’s responsibility under its own terms.

13. Limitation of Liability

To the maximum extent permitted by law, our total liability in connection with the Service or any purchase is limited to the amount you actually paid us for the purchase concerned, and we will not be liable for indirect or consequential damages, including loss of media caused by circumstances beyond our reasonable control. This does not limit liability that cannot be limited under applicable law.

14. Changes to the Service and These Terms

We may update the Service, the packages, the prices, and these Terms from time to time. The current version, with its effective date, is always available in the apps and on the Service website. Changes do not affect purchases already completed.

15. Governing Law and Jurisdiction

These Terms are governed by the laws of the State of Israel. Exclusive jurisdiction lies with the competent courts of the [Tel Aviv-Yafo] district, subject to any mandatory consumer-protection venue rules.

16. Contact Us

Peocl Ltd. — WaterCap Support

Email: **support@peocl.com**

Address: [Company registered address]

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